



File No.: EXP202201385

RESOLUTION OF THE APPEAL FOR RECONSIDERATION

Examined the appeal for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated 10/03/2023, and based on the following

FACTS

FIRST: On 10/03/2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202201385, whereby a fine of €300 was imposed on A.A.A. for the violation of the provisions of Article 5.1.c) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (hereinafter, GDPR), infractions classified under Articles 83.5.b) and 83.4.a) and qualified as very serious under Article 72.1.a) of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD).

This resolution, which was notified to the appellant on 15/03/2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of the LOPDGDD, and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00226/2022, the following were recorded:

First: A complaint was filed regarding the installation of 4 surveillance cameras outside the plot located at ***ADDRESS.1, where the property rented by the complainant (1st floor) is situated. Furthermore, the existing informational sign only warns of the presence of cameras in the area, without including the rest of the information required by the GDPR.

Second: A.A.A. with NIF ***NIF.1 is identified as the main responsible for the installation, who denies that the cameras capture images of the 1st floor of the property, the residence of the complainant. Specifically, he states that "they only capture the ground floor of said dwelling and the common areas."

Third: In the photograph of the camera footage provided by the defendant, it is proven that as of 16/02/2022 none of the devices capture images of the complainant's residence, only of the ground floor of the property. However, various common or passage areas (parking) are visible.

Fourth: On 28/06/2022, a payment of €180 was received corresponding to the infringement of Article 13 of the GDPR, applying the two reductions for voluntary payment and acknowledgment of responsibility by the defendant.

Fifth: The placement of a new informational sign for the monitored area has been accredited, which includes the following data:

- Responsible: A.A.A.
- You can exercise your data protection rights before: ***EMAIL.1.
- More information about the processing of your personal data: empty.

THIRD: The appellant submitted on 24/03/2023, to this Agency, an appeal for reconsideration, basing it fundamentally on the same issues debated throughout the instruction of the file:

"[...]"

However, with due respect, we reiterate that the capture of common areas for the purpose of preventing the commission of crimes does not affect the complainant's privacy in any way, as the mentioned areas have inherent characteristics that imply a lack of impact on privacy.

This is because the parking lot and the access door are areas that, in addition to not having been expressly rented as can be seen in the contract provided in the allegations submitted on July 1, 2022, do not reveal any circumstances of an intimate or personal nature, in addition to NOT BEING SUBJECT TO RENTAL.

This argument is shared by the aforementioned Judgment No. 320/2014, of May 26, of the Provincial

Court of Seville, where the plaintiff considered their right to privacy violated by the installation of security cameras aimed at common areas of a community of property owners.

In that judgment, it was concluded that there was no invasion of the plaintiff's privacy, as the cameras captured common areas where no personal circumstances of an intimate, personal, or reserved nature of the plaintiff were revealed.

The aforementioned judgment is also emphatic in considering that "the placement of security cameras is not an act confined to the intimacy of a person."

It is outrageous, I say with due respect, to consider that the complainant's privacy is affected solely by the act of recording a parking lot that is owned by the speaker and that has never been rented.

Furthermore, the intrusion is minimal and could be avoided if the tenant did not park vehicles in an area over which they hold no title of ownership or possession.

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Furthermore, and as already stated, no harm is caused to the claimant, but rather a benefit consisting of the protection of their property through these cameras, whose purpose is to capture the commission of criminal activities given the location of the property, especially considering that, as previously mentioned, only the first floor of the building has been leased and not the parking area.

[...]

LEGAL GROUNDS

I

Jurisdiction

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of the LOPDGDD.

II

Response to the allegations presented

In relation to the statements made by the appellant, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in the Legal Grounds II of the contested Resolution, as transcribed below:

"[...]

In relation to the allegations made against the proposed resolution of this sanctioning procedure, a response is provided.

The respondent claims that "the capture of common areas for the purpose of preventing the commission of crimes does not affect the privacy of the claimant in any way," as they understand that "they possess inherent characteristics that imply a lack of impact on privacy." Thus, they consider that "the parking area and the access door are zones that, in addition to not having been expressly leased (...), do not reveal any circumstances of an intimate or personal nature," in accordance with Judgment No. 320/2014, of May 26, of the Provincial Court of Seville.

While it is true that the lease agreement signed by the claimant is limited to the first floor of the property, B.B.B., the owner of the property and building, acknowledges in the response to the transfer that "my tenants have permission to park within the property"; furthermore, the respondent does not deny at any time the existence of common areas (entrance door to the plot and parking). Thus, the claimant is making authorized use of them, and the installed video surveillance system by the respondent cannot affect their area of free transit and, consequently, their personal data.

In the images from the monitor, dated 02/16/2022, provided by the respondent in their written allegations against the initiation agreement, it is noted that "Camera 2" not only focuses on the entrance door to the property but also on the entire parking area shared with the claimant.

Additionally, the respondent cites security reasons for the installation of the video surveillance cameras, which is beneficial for the protection of the claimant's property. In this regard, Article 22 of the LOPDGDD provides for the possibility of "carrying out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as

their facilities.” However, this processing must adhere to the principles outlined in Article 5 of the GDPR.

In this case, the respondent does not comply with the principle of “data minimization” enshrined in paragraph c) of the aforementioned provision. The capture of images of the parking area in its entirety entails a data processing that is disproportionate to the pursued purpose, which constitutes a deviation from the primary purpose of this type of device. The privacy of the claimant is affected from the moment the respondent has access to the images from the monitor and, consequently, the ability to control the entries/exits of the claimant, visitors, among others.

Finally, regarding the three judgments mentioned by the respondent in their written allegations (Judgment No. 320/2014, of May 26, of the Provincial Court of Seville, Judgment No. 179/2021, of April 20, of the Provincial Court of Barcelona, and Judgment No. 187/2017, of May 15, of the Provincial Court of Málaga), it should be noted that the issues raised are not related to the subject matter of this sanctioning procedure. The three resolutions refer to the admissibility of photographs/recordings from video surveillance cameras as documentary evidence in a trial. In no case do they address issues related to the matter of personal data protection.

Consequently, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the respondent, for violation of Article 5.1.c) of the GDPR.”

III

Conclusion

Consequently, in this appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on 10/03/2023, in the file EXP202201385.

SECOND: TO NOTIFY this resolution to A.A.A.

THIRD: To warn the sanctioned party that the imposed sanction must be enforced once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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